IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of a Petition of Appeal in terms of Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979.

Court of Appeal Case No:
CA/HCC/239-240/2017
High Court of Negombo Case No:
HC 405/2002

1. Sinnaiah Stanley Lawrence (Now deceased)
2. Hewaniya Gamage Susantha Gunasinghe
3. Mohammed Rafeek

Accused-Appellants

Vs

The Hon. Attorney General
Attorney General's Department
Colombo 12.

Complainant- Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Mahinda Jayawardhna for the 2nd Accused-Appellant
Rienzie Arsacularathne P.C. for the 3rd Accused-Appellant
Janaka Bandara DSG for the Respondent

Argued on : 13.01.2026

Decided on : 20.03.2026

Pradeep Hettiarachchi, J

Judgment

Background

1. Three Accused were indicted before the High Court of Negombo under Section 296 read with Section 32 of the Penal Code on a single count of causing the death of Hapuarachchige Lucian Patrick (hereinafter referred to as "the deceased") on or about 11.12.1990.

2. The 1st Accused-Appellant passed away prior to the commencement of the trial. Thereafter, the indictment was amended on 01.07.2009 to reflect this change. Upon the indictment being read over to the Appellants, they pleaded not guilty to the said charge and elected to be tried by the Judge of the High Court without a jury.

3. At the trial before the High Court, the prosecution led the evidence of PW2 Prema Reeta; PW5 SI Sunil Peter Fernando; PW13 PC 22530 Kumarasena; PW9 ASP Saman Ratnayake; PW17 Dr. Dayapala, Judicial Medical Officer of the Negombo District General Hospital; and PW12 Kumarawickrema, Senior Assistant Government Analyst. The prosecution also adopted the evidence of PW1 under Section 33 of the Evidence Ordinance. The prosecution then closed its case after marking the productions from පැ1 to 7.

Summary of Evidence

4. The first witness for the prosecution was PW2, the mother of the deceased. According to her evidence, on 11.12.1990, the deceased had gone to the Wattala Magistrate's Court to visit his brother (i.e., the second son of PW2), who was in remand custody at the time. PW2 had also gone to the court on that day prior to her son's arrival. While she was inside the courtroom, she had seen the deceased walking towards Samudra Junction. He was alone at that time, and no one was accompanying him. She further

observed that some persons who had a dispute with her son following him immediately after he left the premises. However, at the trial, she did not identify the 2nd and 3rd Accused-Appellants as the persons who followed the deceased.

5. Shortly thereafter, PW2 had heard a sound and rushed in the direction from which it originated. Upon reaching the location, she saw the body of the deceased lying on the ground, covered with a white cloth. His eyes were open, and she observed bleeding from the back of his head.

6. PW5 Sunil Fernando was the officer who arrested the 1st Accused and recovered a 9 mm live bullet from his trouser pocket. Thereafter, PW5 took him to the police station and handed him over to IP Saman Ratnayake together with the said 9 mm live bullet found in possession of the 1st Accused. PW5 stated that they identified the person arrested as one Sinnaiah Laurence Steven (i.e., the deceased 1st Accused).

7. PW5 was shown the 9 mm live bullet contained in a sealed envelope, and he identified it as the same bullet he had handed over to IP Saman Ratnayake. The said live bullet was marked as P1 at the trial. The 1st Accused had died prior to the commencement of the trial.

8. ASP Ratnayake (PW9) also testified at the trial. He stated that while proceeding towards the Peliyagoda SP Office in his jeep, he observed an individual lying on the ground near the Hendala junction. Upon examination, he had realized the person was shot dead. According to PW9's testimony, the shooting incident that caused the death of the deceased had occurred in front of Ruhunu Cycle Works at the Hendala junction. Two teams were subsequently deployed to apprehend the suspects: one led by SI Kapila Perera and the other by Police Sergeant Fernando (11405). SI Kapila Perera had arrested the 2nd and 3rd Appellants, while Police Sergeant Fernando arrested the 1st accused. PW9 further stated that the crime scene was located approximately 400 meters from the Wattala Magistrate's Court.

9. PW9 observed blood stains and four empty cartridges near the deceased's body, along with a fifth empty cartridge located underneath the body. He handed over these five cartridges to the Police Reserve. PW9 also took into custody a 9mm Browns pistol, two

live bullets, and two additional empty cartridges. Referring to his notes, PW9 testified that these specific items were recovered from the possession of the 2nd Appellant, while an additional 9mm live bullet was recovered from the 1st Appellant. All aforementioned productions were properly sealed and transferred to Police Constable Karunaratne (4159) of the Police Reserve. Furthermore, PW9 identified the productions marked පැ1, පැ2, and පැ3. Upon being shown the five empty cartridges registered under PR No. 2, he verified that they were the ones recovered from the crime scene. These five empty cartridges were subsequently marked as පැ4 (a), (b), (c), (d), and (e).

10. PW13, SI Kumarasena, testified before the Court by perusing the notes of SI Kapila Perera, who was a member of the police team that conducted the investigation into the said shooting incident. According to the evidence of PW13, he too was a member of the police team led by SI Kapila Perera.

11. They had proceeded to the crime scene in a police jeep, but upon arrival, they discovered the deceased's body is no longer there. PW9 had subsequently instructed SI Kapila Perera via walkie-talkie regarding the necessary course of action. Additionally, they had received information that two individuals had been seen fleeing along Bunt road, located approximately one and a half miles away from the scene.

12. Thereafter, the police team proceeded towards Bunt road in order to arrest the suspects. While travelling along the Negombo–Wattala Road, PW13 had observed two persons running along Bunt road. When the police team pursued them, they changed direction and attempted to flee across a marshy land, where they became stuck. Both individuals were then arrested. Two cartridges, two live bullets, and two empty cartridges were also recovered at the time of the arrest.

13. SI Kapila Perera had informed PW13 that one of the suspects had thrown a pistol away while running. However, PW13 had not witnessed this incident and was unable to state with certainty who had thrown the pistol.

14. At the trial, PW13 identified the 2nd and 3rd Appellants as the two persons who were arrested in the marshy land. According to PW13, the said productions were handed over to the IP by SI Kapila Perera.

15. According to the evidence of PW13, the pistol and the magazine were recovered from the muddy ground, while the empty cartridge cases were recovered from the crime scene. Upon being shown the said automatic pistol and the magazine, PW13 identified them as the same items. They were marked as පැ2 and පැ3 at the trial, respectively.

16. PW17, Dr. Asarappulige Dayapala, the Judicial Medical Officer, testified at the trial by perusing the post-mortem report prepared by Dr. Mrs. N.R. Mahajudeen and signed by Dr. Mrs. Kariyawasam, whose signature he stated he is familiar with. He testified that, out of the 21 injuries observed on the body, four were caused due to a firearm, which had caused the cranium of the deceased to be split into pieces and resulted in severe damage to the brain. The post-mortem report was marked as පැ4 at the trial.

17. PW17 further opined that the injuries marked as Nos. 1, 2, and 3 were sufficient in the ordinary course of nature to cause the inevitable and instantaneous death of the deceased.

18. PW12, Kumarawickrema, Senior Assistant Government Analyst, received the productions in connection with case No. NS 22292 of the Wattala Magistrate's Court. At the time of receipt, the seals on the productions remained intact and unbroken.

19. Inside the envelope, he found a 9×19 mm automatic pistol, a 9×19 mm live bullet, five 9×19 mm empty cartridge cases, and a tattered shirt. Regarding the pistol, he stated that it was an automatic Browning Indian pistol. The said pistol, marked පැ2 at the trial, was shown to PW12 for identification, and he confirmed that it was the weapon he had examined.

20. PW12 further opined that the empty cartridge cases recovered from the crime scene (marked පැ4(a) to පැ4(e)) had been discharged from the firearm marked පැ2, which was recovered from the marshy land, and that the live bullets were compatible for use with the said firearm.

21. At the trial, the identification of the deceased, the integrity and intact condition of the productions during their inward journey, the post-mortem report, and the Government Analyst's report were admitted by the Appellants in terms of Section 420 of the Code

of Criminal Procedure Act. Furthermore, the affidavit of SI Kapila Perera, dated 08.07.1997, marked 'X2', was also admitted by the defense, notwithstanding the fact that the defense had not had an opportunity to cross-examine him when he tendered the said affidavit before the Wattala Magistrate's Court.

Grounds of Appeal

22. The three grounds of appeal advanced by the 2nd Appellant were included in the grounds of appeal advanced by the 3rd Appellant. The grounds of appeal advanced by the 3rd Appellant are as follows;

    (a) The learned High Court Judge who delivered the Judgment has based her judgment on evidence led before other judges; however, she did not adopt the evidence led before her predecessors, and it is illegal to do.

    (b) In view of the trial being held on piece meal basis before several judges who have not adopted the proceedings of their predecessors, the Appellants had not been awarded a fair trial.

    (c) The Learned High Court Judge has not taken into consideration the deposition 'X1' of PW1. Since the said deposition is not contained in the brief, it is not known what it contained. From the court record, it cannot be gathered what 'X1' contained. In any event, 'X1' has not been considered by the Learned High Court Judge in her judgment. Therefore, there is no evidence upon which the 3rd Appellant could have been found guilty, for the rest of the evidence does not implicate him to the crime.

    (d) The Learned High Court Judge has failed to apply the law pertaining to the circumstantial evidence to the facts of the case.

    (e) The judgment of the Learned High Court Judge does not contain a proper analysis of facts nor the law applicable to the case, and therefore is not a judgment according to law and should not be allowed to stand.

Consideration of the Grounds of Appeal

23. It was contended by the Learned President's Counsel for the 3rd Appellant that the Learned Trial Judge had failed to properly apply the law relating to circumstantial evidence. In this regard, the principles governing the application of circumstantial evidence in criminal cases, as established by authorities decided by the courts in Sri Lanka and in England, are of significant relevance.

24. In ***Rex v Blom,*** which was cited with approval in ***The Queen v Kularatne*** (71 NLR 529 at 534)**,** Whitmeyer J referred to two cardinal rules of logic that govern the use of circumstantial evidence in a criminal trial; (a) the inference sought to be drawn must be consistent with all the proved facts. If it is not, then the inference cannot be drawn, and they do not exclude other reasonable inferences, then there must be a doubt whether the inference sought to be drawn is correct; (b) the proved facts should be such that they exclude every reasonable inference from them save the one to be drawn. If they had not excluded the other reasonable inferences, then there must be a doubt whether the inference sought to be drawn is correct.

25. In the case of ***King v. Abeywickrama -*** 44 NLR 254**,** and in ***Junaiden Mohomed Haaris v. Hon. Attorney General*** **–** SC/Appeal 118/17 (Decided 09.11.2017), it was held that

> *"It was incumbent on the prosecution to establish that the circumstances the prosecution relied on are consistent only with the guilt of the accused-appellant and not with any other hypothesis".*

26. In ***King v. Appuhamy*** **–** 46 NLR 128**,** it was held that

> *"In order to justify the inference of guilt from purely circumstantial evidence, the inculpatory facts must be incompatible with the innocence of the accused and incapable of explaining upon any other reasonable hypothesis than that of his guilt".*

27. It was also held in the case of ***Podisingho v. King*** **–** 53 NLR 49 that

> *"In a case of circumstantial evidence, it is the duty of the trial judge to tell the Jury that such evidence must be totally inconsistent with the innocence of the accused and must only be consistent with his guilt".*

28. ***Don Sunny v. Attorney General (Amarapala murder case)*** **–** (1998) 2 Sri L.R. 1**,** the Supreme Court held:

    1. *"When a charge is sought to be proved by circumstantial evidence the proved items of circumstantial evidence when taken together must irresistibly point towards only the inference that the accused committed the offence. On consideration of all the evidence the only inference that can be arrived at should be consistent with the guilt of the accused only.*

    2. *If on a consideration of the items of circumstantial evidence, if an inference can be drawn which is consistent with the innocence of the accused, then one cannot say that the charges have been proved beyond a reasonable doubt.*

    3. *If upon consideration of the proved items of circumstantial evidence if the only inference that can be drawn is that the accused committed the offence, then they can be found guilty. The prosecution must prove that no one else other than the accused had the opportunity of committing the offence. The accused can be found guilty only if the proved items of circumstantial evidence are consistent with their guilt and inconsistent with their innocence."*

29. Sir Alfred Wills in his book titled `***Wills' Circumstantial Evidence' (Chapter VI),*** lays down the following rules specially to be observed in the case of circumstantial evidence:

    1. *The facts alleged as the basis of any legal inference must be clearly proved and beyond reasonable doubt connected with the factum probandum;*

    2. *The burden of proof is always on the party who asserts the existence of any fact, which infers legal accountability;*

3. *In all cases, whether of direct or circumstantial evidence the best evidence must be adduced which the nature of the case admits;*

4. *In order to justify the inference of guilt, the inculpatory facts must be incompatible with the innocence of the accused and incapable of explanation, upon any other reasonable hypothesis than that of his guilt; and*
5. *If there be any reasonable doubt of the guilt of the accused, he is entitled as of right to be acquitted.*

30. With these legal principles in mind, I shall proceed to analyze the evidence in the instant case. Although the Learned Trial Judge failed to apply the principles of circumstantial evidence to the facts and circumstances, he has correctly identified that the present case rests entirely on circumstantial evidence. There were no eyewitnesses who observed the Appellants shooting the deceased.

31. Accordingly, the only incriminating evidence against the Appellants is that they were seen fleeing from the crime scene, and that one of the Appellants allegedly discarded the weapon purported to be the murder weapon while fleeing. However, this act was not personally observed by PW13, despite his participation in the investigation that day. According to PW13, it was SI Kapila Perera who had witnessed one of the Appellants discarding the murder weapon and subsequently informed the investigating team of the incident.

ප්‍ර : දුවන වෙලාවේ දී මේ විත්තිකරු මොකක්හරි ක්‍රියාවක් කළා ද?

උ : කණ්ඩායම් භාර කපිල මහතා අපට දැනුම් දුන්නා මේ අය අතේ පිස්තෝලයක් තිබී වීසි කල බවට

ප්‍ර : ඒ ගිනි අවිය කවුරුන් විසින් ඔය වගුරු ප්‍රදේශයට විසි කරනවා ඔබේ කණ්ඩායමේ කවුරුන් විසින් හරි දැක්කද? (*Vide* pg. 154)

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උ : කපිල මහතා ඒ බව සටහන් කළා.

ප්‍ර : ඔබ දැක්කේ නැහැ.

උ : නැහැ. (*Vide* pg 163)

32. Furthermore, in reaching his conclusion, the Learned Trial Judge relied on the opinion expressed by PW12 in the Government Analyst's Report, marked P6, that the empty cartridge cases recovered from the crime scene had been fired from the firearm marked P2, which was recovered from the Appellants. (Vide pg. 15–16 of the Judgment dated 26.07.2017).

33. However, it is pertinent to note that, even if it is accepted that the empty cartridge cases marked පැ4(a)–පැ4(e), recovered from the scene of the incident, were fired from the firearm marked පැ2, which was subsequently recovered from the marshy land where the appellants were apprehended, such evidence alone, by itself, is insufficient to establish any nexus between the Appellants and the said firearm. There is no direct evidence linking the Appellants to the possession or use of the weapon, other than the assertion that SI Kapila Perera observed one of the Appellants discarding the pistol while fleeing.

34. Even this assertion lacks specificity and certainty, as no clear evidence was adduced identifying which Appellant allegedly discarded the weapon. Furthermore, there is no evidence to indicate that the Appellants' fingerprints were found on the firearm marked පැ2, nor was the firearm recovered from their exclusive possession. Accordingly, it is doubtful whether the circumstances described above are sufficient to exclude all other reasonable inferences aside from the guilt of the Appellants.

35. Hence, it cannot be reasonably argued that the circumstances mentioned above, when considered cumulatively, point irresistibly towards the guilt of the Appellants. As such, it could not be said that a strong *prima facie* case has been made against the Appellants that requires an explanation from the Appellants to prove their innocence.

36. I shall now proceed to address the issue of common intention raised by the Learned President's Counsel for the 3rd Appellant. In a charge founded on common intention, the prosecution is required to establish, by cogent evidence, that there existed a prior meeting of minds or a pre-arranged plan among the Accused, and that each Accused participated in furtherance of that shared intention. In particular, where the charge is one of murder, the existence of a common murderous intention among the accused must be clearly demonstrated.

37. Section 32 of the Penal Code reads as follows:

> *"When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone."*

38. Accordingly, I shall now proceed to examine the principle of common intention with reference to the following judicial authorities.

39. In the case of ***King v Asappu (1948) 50 NLR*** Dias J restated the underlying principle of common intention as follows;

> *"... in order to justify the inference that a particular prisoner was actuated by a common intention with the doer of the act, there must be evidence, direct or circumstantial, either of pre-arrangement, or a prearranged plan, or a declaration showing common intention, or some other significant fact at the time of the commission of the offence, to enable them to say that a co-accused had a common intention with the doer of the act, and not merely a same or similar intention entertained independently of each other."*

40. Furthermore, in the case of ***Indrawansa Kumarasiri and Others v Kumarihamy, Chief Registrar Colombo and the Attorney General*** SC Appeal No. 14/2019 14 General (SC TAB Appeal No. 2 of 2012 – Decided on 02.04.2014), the Supreme Court has encapsulated the following applicable principles governing the law on Section 32 of the Penal Code in the imputation of criminal liability on several accused;

    a) *The case of each Accused must be considered separately;*
    b) *The Accused must have been actuated by a common intention with the doer of the act at the time the offence was committed;*
    c) *Common intention must not be confused with the same or similar intention entertained independently of each other;*
    d) *There must be evidence, either direct or circumstantial, of prearrangement or some other evidence of common intention;*

e) It must be noted that common intention can be formed on the "spur of the moment";

f) The mere fact of the presence of the accused at the time of the offence is not necessarily evidence of common intention;

g) The question whether a particular set of circumstances establishes that an accused person acted in furtherance of common intention is always a question of fact;

h) The Prosecution case will not fail if the Prosecution fails to establish the identity of the person who struck the fatal blow provided common murderous intention can be inferred.

i) The inference of common intention should not be reached unless it is a necessary inference deducible from the circumstances of the case.

41. However, upon perusal of the impugned judgment, it is evident that, although the Learned Trial Judge convicted the 2nd and 3rd Appellants on the basis of common intention, no reasons were provided to demonstrate as to how they shared a common intention in committing the murder. The judgment is entirely devoid of any analysis showing a prior meeting of minds, a pre-arranged plan, or any form of concerted action among the appellants.

42. Regrettably, in the impugned judgment, the Learned Trial Judge failed to explain the basis upon which the Appellants were found guilty on the ground of common intention. The judgment does not analyze what evidence existed to infer the sharing of intention, the extent of participation of each Appellant, the requisites for constituting common intention, or whether the available evidence was sufficient to support such a finding.

43. This failure to provide cogent reasons on a fundamental element of liability constitutes a serious lacuna in the impugned judgment, thereby rendering the conviction unsafe and unsustainable in law.

44. In determining whether the subsequent conduct of the Appellants in the present case could infer joint liability on the basis of common intention, the decision in ***The King v Jan Singho*** 41 NLR 573 becomes much relevant. In the said case, the case for the prosecution was that the deceased was shot dead by the 1st Appellant, and the 2nd and

the 3rd Appellants were in his company and acting in furtherance of a common intention. The evidence was that the 2nd and the 3rd Appellants were seen running away from the scene of the incident and that they were subsequently not seen in their homes. Moseley J held as follows;

> *"It does not seem to us that these facts lead one irresistibly to the inference that such a common intention existed on the part of the second and third appellants. Their actions are capable of innocent explanations, even though no such explanation was given by either of them. There was no evidence of ill-feeling between the second appellant and the deceased, and evidence only of a very slight motive on the part of the third appellant. There was evidence that the second appellant had, on previous occasions, been in the company of the first appellant, who at the time was armed with a gun. There was, therefore, nothing extraordinary in the fact that the two were in company at the time of the incident, nor was there any reason why the third appellant, who was a first cousin of each of them, should not be with them." (At pg. 574).*

45. In the present case, the Appellants had been seen running together subsequent to the shooting, and one of them had discarded the alleged murder weapon. Such subsequent conduct does not, in my opinion, lead irresistibly towards the inference that the Appellants were acting in concert with each other and entertained the common murderous intention to bring about the death of the deceased.

46. There was no evidence whatsoever to the effect that the Appellants shot the deceased. According to PW13, the only information received by them was that two people were running along the Bunt road (*Vide* pg. 163). Hence, it cannot be inferred that the Appellants' subsequent conduct is incapable of innocent explanation, even though such an explanation is not given by the Appellants.

<u>Conclusion</u>

47. The aforementioned infirmities apparent in the impugned Judgment render the conviction clearly untenable. Consequently, it is unnecessary to examine the other grounds advanced by the Appellants.

48. In light of the foregoing factual and legal analysis, the conviction of the appellants cannot be sustained. Under these circumstances, I conclude that the prosecution has failed to establish its case beyond a reasonable doubt.

49. For the reasons stated above, the appeal is allowed, and the convictions and sentences imposed on the appellants by the Learned High Court Judge of Negombo are hereby set aside. Accordingly, the 2nd and 3rd Appellants are acquitted of the charges leveled against them.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree,

Judge of the Court of Appeal